

SENATE JOINT RESOLUTION 650

By Johnson

A RESOLUTION to support the effort to dismantle the U.S. Department of Education and restore authority over education to the states.

WHEREAS, the United States Constitution establishes a federal system that reserves powers not delegated to the federal government to the states and the people; and

WHEREAS, education is not a power delegated to the federal government and has historically been governed by states and local communities accountable to families; and

WHEREAS, the creation of the U.S. Department of Education significantly expanded federal involvement in education while academic achievement stagnated or declined; and

WHEREAS, national assessments and polling reflect troubling trends in student reading and mathematics performance, as well as deficiencies in civic knowledge; and

WHEREAS, decades of increased federal spending and regulation have imposed substantial administrative burdens on states and local education agencies without commensurate improvements in student outcomes; and

WHEREAS, federal oversight has contributed to administrative growth that diverts resources away from classroom instruction; and

WHEREAS, states are the drivers of innovation in education and are uniquely positioned to implement reforms that expand opportunity and improve outcomes; and

WHEREAS, governors, state legislators, and local officials are directly accountable to parents and taxpayers for decisions regarding education; and

WHEREAS, prioritizing the needs of students and families requires placing decision-making authority with those closest to the classroom; and

WHEREAS, recent reorganizational restructuring within the U.S. Department of Education demonstrates that certain responsibilities may be transitioned without materially disrupting educational services; now, therefore,

BE IT RESOLVED BY THE SENATE OF THE ONE HUNDRED FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, THE HOUSE OF REPRESENTATIVES CONCURRING, that the General Assembly affirms this State's responsibility to lead on education in a manner consistent with the United States Constitution and the principles of federalism.

BE IT FURTHER RESOLVED, that the General Assembly supports efforts to return primary authority over education to the states and expresses its intent to pursue opportunities to regain control over kindergarten through grade twelve (K-12) education.

BE IT FURTHER RESOLVED, that the General Assembly supports the orderly transfer of appropriate responsibilities from the U.S. Department of Education to entities better suited to administer those functions.

BE IT FURTHER RESOLVED, that the General Assembly urges the Governor to establish a task force for educational leadership, composed of representatives from the General Assembly, the Office of the Governor, the Tennessee Department of Education, the Office of the Attorney General and Reporter, and other stakeholders as the Governor deems appropriate.

BE IT FURTHER RESOLVED, that the task force is encouraged to develop and publish a comprehensive plan for assuming responsibility for education programs currently administered by the U.S. Department of Education, including, but not limited to, Title programs, special education, and civil rights enforcement.

BE IT FURTHER RESOLVED, that the comprehensive plan is encouraged to include:

- (a) Recommended statutory changes necessary for this State to assume administrative control over federal education programs;

(b) Recommended waivers, transfers, or block grants to be requested from the federal government;

(c) Identification of federal education mandates from which this State may seek relief; and

(d) Recommendations for legislation for consideration by the General Assembly.

BE IT FURTHER RESOLVED, that the Tennessee Department of Education is encouraged to assist in the development of the comprehensive plan by conducting an inventory of federal education programs and grants administered by the State, including the funding amounts, statutory authority, and reporting requirements.

BE IT FURTHER RESOLVED, that the Office of the Attorney General and Reporter is encouraged to review state statutes and rules that reference or incorporate federal education statutes or regulations to identify areas in which greater state autonomy may be pursued.

BE IT FURTHER RESOLVED, that the task force is encouraged to cooperate with other states to pursue joint waiver requests and coordinated negotiations with the U.S. Department of Education to accelerate the return of educational authority to the states.

BE IT FURTHER RESOLVED, that the task force is encouraged to recommend metrics to evaluate student outcomes, fiscal efficiency, and regulatory burdens and to report its findings to the Governor and the General Assembly.

BE IT FURTHER RESOLVED, that upon the completion of its work, the task force is encouraged to provide recommendations regarding the appropriate duration of the task force and the publication of a public report comparing outcomes under increased state leadership with prior periods of federal oversight.

BE IT FURTHER RESOLVED, that the Chief Clerk of the Senate shall transmit copies of this resolution to the President of the United States, the U.S. Secretary of Education, and each member of the Tennessee Congressional delegation.